

Google Cloud Master Agreement SecOps Services Schedule

This SecOps Services Schedule (the "Services Schedule") supplements and is incorporated by reference into the Google Cloud Master Agreement. This Services Schedule applies solely to the services and software described in this Services Schedule and is effective for the Term of the Agreement. Terms defined in the General Terms apply to this Services Schedule.

1. Using the Services.

- 1.1 Account. Google (or Reseller or Distributor) will provide Customer with the Account through which Customer may access the Services. Customer is responsible for (a) maintaining the confidentiality and security of the Account and associated passwords, including any keys for Google APIs, if any, and (b) any use of the Account.
- 1.2 Ceasing Services Use. Customer may stop using the Services at any time.
- 1.3 Customer Applications. Customer may enable End Users to access its Customer Applications.
- 1.4 Additional Use Restrictions. Customer will not use the Services to provide a hosting, outsourced, or managed services solution to unaffiliated third parties, except as part of a Customer Application that provides value distinct from the Services.

- 2. Data Processing and Security. Google will only access, use, and otherwise process Customer Data in accordance with the Data Processing Addendum and will not access, use, or process Customer Data for any other purpose. Google has implemented and will maintain technical, organizational, and physical safeguards to protect Customer Data, as further described in the Data Processing Addendum.

3. RESERVED

4. Updates to Services and Terms.

- 4.1 Changes to Services.
 - (a) Limitations on Changes. Google may update the Services, provided the updates do not result in a material reduction of the functionality, performance, availability, or security of the Services.
 - (b) Discontinuance. Notwithstanding Section 4.1(a) (Limitations on Changes), Google may discontinue a Service (or associated material functionality) provided that Google will notify Customer at least 12 months before discontinuing such Service (or associated material functionality), unless Google replaces such discontinued Service or functionality with a materially similar Service or functionality.
 - (c) Support. Google will continue to provide product and security updates, and Technical Support Services, until the conclusion of the applicable notice period under subsection (b) (Discontinuance).
 - (d) Backwards Incompatible Changes. Notwithstanding Section 4.1(a) (Limitations on Changes), Google may significantly modify a Customer-facing Google API in a backwards-incompatible manner, provided that Google will notify Customer at least 12 months before doing so.
- 4.2 Changes to Terms. Google may update the URL Terms, provided the updates do not (a) result in a material reduction of the security of the Services, (b) expand the scope of or remove any restrictions on Google's processing of Customer Data as described in the Data Processing Addendum, or (c) have a material adverse impact on Customer's rights under the URL Terms. Google will notify Customer of any material changes to the URL Terms and such changes will be effective upon notice.

- 4.3 **Permitted Changes.** Sections 4.1 (Changes to Services) and 4.2 (Changes to Terms) do not limit Google's ability to make changes required to comply with applicable law or address a material security risk, or that are applicable to new or pre-general availability Services, offerings, or functionality. Notwithstanding Section 4.2 (Changes to Terms), material changes to the URL Terms made to comply with applicable law or to address a material security risk will be effective immediately.
5. **Temporary Suspension.**
- 5.1 **Services Suspension.** Google may Suspend Services if (a) necessary to comply with law or protect the Services or Google's infrastructure supporting the Services or (b) Customer's or any End User's use of the Services does not comply with the AUP, and it is not cured following notice from Google.
- 5.2 **Limitations on Services Suspensions.** If Google Suspends Services under Section 5.1 (Services Suspension), then (a) Google will provide Customer notice of the cause for Suspension without undue delay, to the extent legally permitted, and (b) the Suspension will be to the minimum extent and for the shortest duration required to resolve the cause for Suspension.
6. **Technical Support.** Google will provide Technical Support Services to Customer during the Order Term in accordance with the Technical Support Services Guidelines. Customer is responsible for the technical support of its Customer Applications and Projects.
7. **Copyright.** Google responds to notices of alleged copyright infringement and terminates the Accounts of repeat infringers in appropriate circumstances as required to maintain safe harbor for online service providers under the U.S. Digital Millennium Copyright Act.
8. **Software.** Google may make Software available to Customer, including third-party software. Customer's use of any Software is subject to the applicable provisions in the SecOps Service Specific Terms.
9. **Survival.** The following Sections of this Services Schedule will survive expiration or termination of this Services Schedule: Section 11 (Additional Definitions).
10. **Termination of Previous Agreements.** If Google, including its Affiliates, and Customer have previously entered into an agreement for the Services, then the parties agree that this Agreement will govern the provision and use of the Services going forward.

11. **Additional Definitions.**

"**Account**" means the account that Google (or Reseller or Distributor) assigns to Customer to access the Services.

"**AUP**" means the then-current acceptable use policy for the Services, at <https://cloud.google.com/terms/aup>.

"**Covered Affiliate**" means a Customer Affiliate that uses the Services under the Agreement.

"**Customer Application**" means a software program that Customer creates, integrates, or hosts with the Services.

"**Customer Data**" means data provided to Google by Customer or End Users through the Services under the Account, and data that Customer or End Users derive from that data through their use of the Services.

"Customer Indemnified Materials" means Customer Data, Customer Brand Features, Customer Applications, and Projects.

"Data Processing Addendum" or "Data Processing Terms" means the then-current terms describing data processing and security obligations with respect to Customer Data, at <https://cloud.google.com/terms/secops/data-processing-terms>.

"End User" or "Customer End User" means an individual that Customer permits to use the Services (or Customer Application(s), if applicable). For clarity, End Users may include employees of Customer Affiliates and other authorized third parties.

"Google API" means any application programming interface provided by Google as part of the Services.

"Google Indemnified Materials" means the Services and Google's Brand Features.

"Notification Email Address" means the notification email address provided to Google by the Distributor or Reseller. Notwithstanding Section 12.16 of the General Terms, this definition shall prevail over any conflicting definition of "Notification Email Address" in the Data Processing Addendum.

"Order Form" means an order form, statement of work, or other ordering document issued by Google, Reseller or Distributor and executed by Customer and issuer specifying the Services Google will provide to Customer under this Services Schedule.

"Prices" means the prices for the Services, Software, and Technical Support Services as described in an Order Form or the applicable Reseller Agreement or Distributor Agreement.

"Project" means an instance of the Services configured and used by Customer.

"SecOps Service Specific Terms" means the then-current terms specific to one or more Services or Software, at <https://cloud.google.com/terms/secops/service-terms>.

"Services" means the then-current services described at <https://cloud.google.com/terms/secops/services>, excluding any Third-Party Offerings.

"SLA" means the then-current service level agreements at <https://cloud.google.com/terms/secops/sla>.

"Software" means any downloadable tools, software development kits, or other such computer software provided by Google for use in connection with the Services, and any updates Google may make to such Software from time to time, excluding any Third-Party Offerings.

"Technical Support Services" or "TSS" means the then-current technical support services provided by Google to Customer under the Technical Support Services Guidelines.

"Technical Support Services Guidelines" or "TSS Guidelines" means the then-current Google support service guidelines, at <https://cloud.google.com/terms/tssg>.

"Third-Party Offerings" means (a) third-party services, software, products, and other offerings that are not incorporated into the Services or Software, and (b) third-party operating systems.

"URL Terms" means the AUP, Data Processing Addendum, SecOps Service Specific Terms, SLAs, and Technical Support Services Guidelines. The URL Terms for SecOps Services are all available at <https://g.co/cloud/secops-directory-terms>.